

productive to the goal of preventing dissipation of funds. Plaintiff contends that a receivership would preserve the status quo, but that is not the function of an appointment of receiver under section 564, which is to prevent further injury to property or losses. “Where an injunction will protect all the rights to which the applicant for the appointment of a receiver appears to be entitled, a receiver will not be appointed.” [Citation.]” (*Alhambra-Shumway Mines, Inc. v. Alhambra Gold Mine Corp.* (1953) 116 Cal.App.2d 869, 873.) Here, Plaintiff has not explained why an injunction ordering Defendant to deposit rental proceeds into escrow and to keep proper accounting would not be sufficient to protect Plaintiff’s interests to the extent any rents are being wrongfully withheld.

Motion for Appointment of a Receiver DENIED.

Case Management Conference confirmed for 7.30.26.

Order to Show Cause re default of Defendants Joseph Urso, Todd Follmer and Jennifer Burton set for 7.30.26.

Order to Show Cause re Proof of Service of Cross-Defendant Big Horn 1, LLC set for 7.30.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2601632	KOGAN VS PELTZ	DEMURRER ON COMPLAINT OF VADIM “DAVID” KOGAN BY BEAU JAMES PELTZ DBA CLEARLY THE BEST POOLS SERVICE, A SOLE PROPRIETORSHIP

Tentative Ruling: No tentative ruling. This hearing was continued to 8.05.26 for proper meet and confer.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2601632	KOGAN VS PELTZ	MOTION TO STRIKE COMPLAINT ON COMPLAINT OF VADIM “DAVID” KOGAN BY BEAU JAMES PELTZ DBA CLEARLY THE BEST POOLS SERVICE, A SOLE PROPRIETORSHIP

Tentative Ruling: No tentative ruling. This hearing was continued to 8.05.26 for proper meet and confer.